

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wade Carper	Team: Team # 5	CCRB Case #: 200101696	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 01/13/2001 12:15 AM	Location of Incident: In the holding cell of the 81st Precinct station house	Precinct: 81	18 Mo. SOL 7/13/2002	EO SOL 7/13/2002	
Date/Time CV Reported Fri, 02/23/2001 10:55 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Fri, 03/09/2001 4:54 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. SGT Ruel Stephenson	05472	916748	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Paul Petro	23430	880487	081 PCT
2. POM Vincent Aversa	11803	915260	081 PCT
3. SGT Jeffrey Rosen	04784	878508	081 PCT
4. POM Ronald Schule	06150	902382	081 PCT
5. POM Ronaldo Burke	21700	921182	081 PCT
6. POM James McLaughlin	22510	882702	081 PCT
7. POM Randy Shapiro	27947	920831	081 PCT
8. POM Frank Tobin	28550	886627	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A. An officer	Force: An officer used physical force against § 87(2)(b)	
B. An officer	Abuse: An officer strip-searched § 87(2)(b)	
C. An officer	Abuse: An officer did not provide his name and/or shield number to § 87(2)(b)	
D. SGT Ruel Stephenson	Abuse: SGT Ruel Stephenson did not process § 87(2)(b)'s complaint regarding an officer.	

Synopsis

This case was submitted for board review on February 19, 2002. The board recommended the investigation be continued. On the evening of January 12, 2001, PO Randy Shapiro arrested § 87(2)(b) for § 87(2)(b). § 87(2)(b) was transported to the 81st Precinct station house, processed, and placed in the holding cell. § 87(2)(b) fell asleep on the floor. Several hours later, an unidentified officer standing outside the cell woke up § 87(2)(b). The officer was wearing a uniform, but without a shield or nameplate. The officer demanded to know what § 87(2)(b) had in his pants. After § 87(2)(b) replied that he had already been searched, the unidentified officer opened the cell, pushed § 87(2)(b) onto his back, grabbed the front of his pants and pulled them down forcibly. He pulled § 87(2)(b)'s pants and underwear down to his mid thigh. § 87(2)(b) attempted to get the officer's identification, but the officer refused to provide it. § 87(2)(b) complained about the incident to the desk officer, Sgt. Ruel Stephenson. § 87(2)(b) alleged that Sgt. Stephenson ignored his complaint. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was able to identify Sgt. Stephenson from a photo array. Sgt. Stephenson denied having any knowledge of the incident or of § 87(2)(b) complaining to him. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) old black male, 5'9" tall and 180 pounds, with black hair and § 87(2)(b) eyes. There is no record of him filing any previous CCRB complaints. He resides at § 87(2)(b) in Brooklyn. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) Discussed in more detail below, § 87(2)(b) complained about the incident immediately after it occurred, but no complaint report was taken. He also attempted to file a complaint when he picked up his property, but was told he needed to file a complaint through the CCRB. § 87(2)(b) maintained he called the CCRB on an unspecified date and left a message on the answering machine. His call was not returned.

§ 87(2)(b) eventually filed a complaint in person at the 77th Precinct on February 23, 2001 (enclosures 3a-3e). In his written complaint, § 87(2)(b) stated he had been arrested and taken to the 81st Precinct, where he was searched and placed in the holding cell. He alleged that some time after midnight an officer without a shield asked him to open his pants to what § 87(2)(b) was wearing under his pants. § 87(2)(b) instructed the officer that he had already been searched. The officer left briefly and returned with the cell keys. § 87(2)(b) was lying on the floor of the cell. The officer rolled him over, and "ripped" open the belt and pants zipper and pulled § 87(2)(b)'s pants and underwear down. § 87(2)(b) asked for an explanation but the officer did not answer. § 87(2)(b) asked for the officer's "name and number," but the officer refused to provide it. § 87(2)(b) called the "desk sergeant" and asked him for the information. The desk sergeant also refused to provide it. He identified the sergeant as "Sgt. Richardson."

The complaint was forwarded to the CCRB on March 9, 2001 (enclosures 4a-4c). § 87(2)(b) was contacted by phone on March 28, 2001 (enclosure 5). He provided a brief narration of the incident and articulated the same details as in his original complaint. § 87(2)(b) was interviewed at the CCRB on April 3, 2001 (enclosures 6a-6e). At 7:45 p.m. on January 12, 2001, § 87(2)(b) heard a knock on the window of his § 87(2)(b) apartment on § 87(2)(b) in Brooklyn. He went outside to check and observed § 87(2)(b), his former girlfriend, standing a short distance away. § 87(2)(b) assumed that she had been the one that had knocked on his window. He returned to his apartment and put on a jacket. By the time he got outside, § 87(2)(b) was "half way up the block." § 87(2)(b) walked up the block to see

what she wanted. § 87(2)(b) looked back and began running. § 87(2)(b) noticed a marked police car moving very slowly on Bainbridge Street. The car turned onto Patchen Avenue and § 87(2)(b) approached the police car and got into the back seat. After a few moments, § 87(2)(b) got out of the car and exclaimed to the officers, “She has an order of protection against him.” § 87(2)(b) looked around and saw that § 87(2)(b) was referring to § 87(2)(b), also a former girlfriend and the mother of his child. § 87(2)(b) and § 87(2)(b) had spent the previous evening at the hospital awaiting results of tests being conducted on their baby. § 87(2)(b) was supposed to bring over some paperwork on the night of the incident. Two officers exited their vehicle and one of them told § 87(2)(b) to put his hands on a fence. § 87(2)(b) denied that the order of protection was still valid. One of the officers told him they needed to check the computer. § 87(2)(b) denied doing anything to either of the women. § 87(2)(b) was handcuffed without incident and transported to the 81st Precinct by PO Randy Shapiro and his partner PO Michael Hoffman.

At the precinct, PO Shapiro searched § 87(2)(b) in front of the desk sergeant, subsequently identified as SGT Jeffrey Rosen. The officers had obtained a copy of the order of protection, presumably from § 87(2)(b). PO Shapiro took down § 87(2)(b)'s information and another officer, PO #3, vouchered his property including his shoestrings and belt. § 87(2)(b) was placing in the holding cell. There were about eight men already in the cell. It was about 8:20 p.m. § 87(2)(b) did not know anyone in the cell. During the course of the evening, he overheard an officer speak to one of the men, § 87(2)(b) about a warrant. He also learned that several of the men had been arrested at § 87(2)(b). § 87(2)(b) was tired from not sleeping at the hospital the previous night and fell asleep on the floor of the holding cell.

The next thing § 87(2)(b) recalled was someone saying, “You on the ground there, wake up. You on the ground there, wake up.” § 87(2)(b) looked up and observed an officer standing outside of the cell. The officer told § 87(2)(b) to “Open your pants, I want to see what is under your pants.” § 87(2)(b) explained that he did not have to do that; he had been searched already. The officer responded, “Okay, Okay,” and left the cell area. A few moments later, he returned with keys to the cell. He opened the cell door and walked straight over to § 87(2)(b) who was lying on his right side. The officer rolled § 87(2)(b) over very roughly. With § 87(2)(b) lying on his back, the officer “tugged” on his pants until the button and zipper broke from the force. The officer pulled the front of § 87(2)(b)'s pants and underwear down to the middle of his thigh. He looked at § 87(2)(b)'s body and then abruptly left the cell. § 87(2)(b) asked the officer why he did that and why he did not check the other men in the cell. The officer replied that “he is the law.” § 87(2)(b) asked for his name and badge number. The officer did not answer the question, but asked for § 87(2)(b)'s name. § 87(2)(b) replied that he had asked a question and would like his name and number. The officer explained that § 87(2)(b) was a prisoner. § 87(2)(b) responded that prisoners have rights too and he wanted the officer's name and number. The officer told him, “Okay, I'll put you down as John Doe.” § 87(2)(b) was sure the officer did not have on a shield and nameplate on his uniform.

§ 87(2)(b) called the desk sergeant, subsequently identified as Sgt. Ruel Stephenson, to come over. He reasoned the shift had changed because the desk sergeant was different from the one that been there when he was first brought in. § 87(2)(b) told Sgt. Stephenson that the other officer had just done something to him that made him feel violated. He explained to Sgt. Stephenson exactly what had happened and asked Sgt. Stephenson for the officer's “name and number” so he could make a complaint. Sgt. Stephenson replied, “Look at him and ask him for it.” § 87(2)(b) explained that he had asked several times and the officer had refused to provide it. § 87(2)(b) asked the sergeant if he was refusing to provide the officer's information. Sgt. Stephenson walked away without responding. The officer put the cell keys back and returned to ask the rest of the men in the cells for their names. When he finished, he went to a desk on the other side of a glass wall in view of the cells. § 87(2)(b) continued “making noise” about what the officer did to him. § 87(2)(b) stated that there were a few other officers working in the precinct at this time.

§ 87(2)(b) provided descriptions of several of the officers he encountered. Of note is his description of the officer that searched him in the cell. He described him as a white male in a blue uniform without a badge, about 35 to 36 years of age, 6'1” tall, with a “big” build, thick black hair, and a black mustache. Additionally, he described the second desk supervisor as being a black male in a white uniform, 6'1” tall, with a big “weight lifter” build, clean-shaven, and a shaved head.

On September 6, 2001, § 87(2)(b) viewed seven sets of photo arrays of officers (enclosures 7a-7b, 8a-8g). Initially, § 87(2)(b) did not identify any of the officers. He responded that he was certain that the arresting officer, PO Shapiro, his partner, PO Hofmann, and the officer that came into the cell were not among the photographs. § 87(2)(g)

§ 87(2)(b) requested to look at the arrays again, specifically #2 and #4. He again did not identify any of the officers in array #2. In array #4, § 87(2)(b) pointed to photograph #3 (Sgt. Stephenson) and said, "this guy." He stated the officer in the photograph very closely resembled the desk officer that he complained to. The only difference in appearance was that the officer in photo #3 had a small patch of hair and the desk officer had a shaved head. § 87(2)(b) looked at all of the arrays again and stated that officer #4 (Sgt. Rosen) in array #5 was the desk officer when he first arrived at the station house. § 87(2)(b) could not identify any other officers. He reiterated that the officer that searched him had a full head of hair and black mustache.

Results of Investigation

Civilian Witnesses

According to § 87(2)(b) there were approximately eight people already in the holding cell when he was brought in. However, the incident occurred several hours later. Using the Command Log and records of arrests it was determined there were ten individuals who had been arrested and were still in custody in the 81st Precinct when the incident allegedly occurred (enclosure 31). Addresses were obtained from their arrest reports and where possible, confirmed through either DMV records or Metrosearch (enclosures 30a-30d). Phone numbers were obtained from some of the arrest reports (26a-26g). Efforts were made to contact all of these individuals by telephone and letter. Many of the contact letters were returned for insufficient addresses or that the addressee no longer lived there (35a-35t). Contact attempts by telephone were also generally unsuccessful. § 87(2)(b), § 87(2)(b), and § 87(2)(b) were all successfully contacted and spoken to over the phone.

§ 87(2)(b)

§ 87(2)(b) was contacted by telephone on July 20, 2001 (enclosure 9). He confirmed that he had been arrested with two individuals on the date of the incident, § 87(2)(b) and § 87(2)(b). § 87(2)(b) and § 87(2)(b) were taken to the juvenile room, while § 87(2)(b) was taken to the holding cell. § 87(2)(b) stated he was not in the holding cell at any time and did not witness the incident involving § 87(2)(b). § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was contacted by telephone on July 24, 2001 (enclosure 10). He confirmed he was arrested on the date of the incident and taken to the 81st Precinct and placed in the holding cell. A number of individuals were already in the holding cells. § 87(2)(b) explained that there are two holding cells. One or two other men were in his holding cell, and more individuals were in the other one. § 87(2)(b) did not recall an officer coming into his holding cell that evening. He did not know if anyone went in the other one. The only disturbance § 87(2)(b) recalled was one of the prisoners requesting to speak to a sergeant upstairs. The prisoner was young and was "talking tough," told the officer, "you know who I am." § 87(2)(b) did not recall any other incidents that night.

§ 87(2)(b)

§ 87(2)(b) was contacted by telephone on July 25, 2001 (enclosures 11a-11b). He confirmed he was arrested with § 87(2)(b) and § 87(2)(b) and brought to the station house at about 10:00 p.m. He stated that § 87(2)(b) and § 87(2)(b) were minors and were taken to a room, while he was taken to the holding cell. He estimated there were already about ten individuals in the holding cell. § 87(2)(b) was

asked if any of the prisoners complained about any of the officers that night. § 87(2)(b) explained that one of the prisoners complained that he was hungry and the officers were not giving him any food. This prisoner complained repeatedly that his stomach was bothering him. § 87(2)(b) stated that another prisoner wanted one of the officer's "identity." This prisoner asked for the badge number, but "they would not give it to him." § 87(2)(b) conveyed that he did not see what the officer looked like. He added that several officers refused to provide the officer's identification.

§ 87(2)(b) was asked if at any time, an officer came into the holding cell. § 87(2)(b) recalled at one point during the night that an officer told one of the men "to get up" or something similar to that. The prisoner "was tired or couldn't move." The officer then came into the cell and "dug into his pants" and "drawers." § 87(2)(b) was unsure why the officer did this. The prisoner asked for the officer's name and badge number. The prisoner also asked another officer for the first officer's information. Neither officer provided the information. They were laughing at the prisoner.

NYPD Officers

PO Randy Shapiro

PO Randy Shapiro is a § 87(2)(b) year old white male, 5'8" tall and 140 pounds, with brown hair and brown eyes. He has been a NYPD officer for four years. He is currently assigned to the 81st Precinct. PO Shapiro was interviewed at the CCRB on January 14, 2002 (enclosures 13a-13b).

On January 12, 2001, PO Shapiro and PO Michael Hofmann were assigned to patrol sector FGH in the 81st Precinct. PO Shapiro recalled that § 87(2)(b) was arrested for either violating an Order of Protection or "something domestic." His memo-book recorded that at 7:20 p.m., he picked up a call of a dispute occurring at the corner of Bainbridge Street and Patchen Street (enclosures 12a-12d). After looking at his memo-book, PO Shapiro was able to recall that a woman had jumped in front of the police car to stop them. The woman made allegations that § 87(2)(b) was going to hurt her. She claimed she had an Order of Protection against § 87(2)(b). § 87(2)(b) was nearby and they arrested him at 7:37 p.m. PO Shapiro and PO Hoffman transported him to the 81st Precinct. PO Shapiro did not recall anything out of the ordinary about § 87(2)(b)'s demeanor or behavior that night. § 87(2)(b) was not disruptive and was compliant. PO Shapiro went so far as to call him a "gentlemen." PO Shapiro did not see a reason to strip-search § 87(2)(b). He was unsure if he resumed patrol after the arrest. PO Shapiro stated that the officer assigned as the cell attendant usually keeps track of the prisoners in the holding cell, but that the desk officer is ultimately in charge of maintaining the cells. When asked about PO Petro, who was assigned as the cell attendant, PO Shapiro stated that PO Petro is the steady Assistant Desk Officer (ADO) and is sometimes the cell attendant "on paper." PO Shapiro expressed that in his four years at the 81st Precinct, PO Petro has "never" had "anything to do with the prisoners."

Sgt. Ruel Stephenson

Sgt. Ruel Stephenson is a § 87(2)(b) year old black male, 6'0" tall and 225 pounds, with black hair and black eyes. He has been a NYPD officer for six years. He is currently assigned to the 50th Precinct. He was interviewed at the CCRB on January 15, 2002 (enclosures 14a-14c).

On January 12, 2001, Sgt. Ruel Stephenson worked the midnight shift as the desk officer in the 81st Precinct. He came on duty on 11:05 p.m. and worked until 8:02 a.m. the next morning. SGT Stephenson did not have any memo-book entries regarding the incident and did not recall § 87(2)(b). It was explained that § 87(2)(b) was arrested and brought to the precinct by PO Shapiro at 6:55 p.m., prior to Sgt. Stephenson being on duty. § 87(2)(b) was then put into the holding cell. Sgt. Stephenson confirmed the notation in the command log that he came on duty at 11:05 p.m. The command log noted an inspection of the cells and prisoners was done at 11:15 p.m. Sgt. Stephenson confirmed that this occurs at the beginning of each tour of duty. He does not normally write in the command log which officer conducted the cell check. Sgt. Stephenson stated the cell attendant of the incoming tour usually does the cell check. The inspection of the cells is to ensure the proper condition of the cells and to ensure the prisoners do not

have “contraband and weapons.” Sgt. Stephenson stated he does not like to rely on the previous tour. He maintained that on his tours, the cell attendant may “re-search” prisoners for safety. On the roll call, the cell attendant duties were not assigned. Sgt. Stephenson maintained that if there are prisoners, there would be a cell attendant. He was not sure why it was not noted on the roll call. He stated it should also be on the prisoner roster, which lists all of the prisoners in the cell and notes the cell attendant for each tour. Sgt. Stephenson looked at the roll call and stated, “it’s possible” it was “whoever the arrest processing officer was.” He explained that the arrest processing area and the cells are right next to each other.

Sgt. Stephenson did not recall “anything particular” about the date of the incident. He did not recall any disturbances occurring with any of the prisoners. Sgt. Stephenson did not recall PO McLaughlin having a problem with any of the prisoners. He maintained he had “no recollection” of a prisoner calling him over to the cell area. A description of § 87(2)(b) and the search was described for Sgt. Stephenson. He denied recalling the incident, stating he was “not aware of that incident at all.” He did not remember § 87(2)(b) complaining that one of the officers had pulled his pants down. He also did not recall § 87(2)(b) requesting the officer’s name and badge number. Sgt. Stephenson explained that in the winter, individuals wear many levels of clothing; an officer may have a prisoner strip down to his underwear to ensure they have no weapons or contraband. Sgt. Stephenson could not recall whether PO McLaughlin did the check of the cells that night, that it was “not uncommon.” Sgt. Stephenson confirmed that he was aware of the procedure for conducting a strip search. He stated that since he was the desk officer, he would have to authorize the strip searching of a prisoner. He could not recall whether he authorized a strip search of § 87(2)(b) on the night of the incident, but confirmed that he would have noted it in the command log if he had. He denied that either the commanding officer or the ICO spoke to him about the incident.

PO James McLaughlin

PO James McLaughlin is a § 87(2)(b) year old white male, 5’10” tall and 220 pounds, with brown hair and brown eyes. He has been a NYPD officer for eighteen years. He is currently assigned to the 81st Precinct. He was interviewed at the CCRB on March 22, 2002 (enclosures 19a-19b).

On January 13, 2001, PO James McLaughlin worked the midnight shift as the arrest processing (LAPS) officer for the 81st Precinct. He started his shift at 11:15 p.m. the previous day and worked until 7:50 a.m. PO McLaughlin is usually a training officer, but is sometimes assigned to the station house. The LAPS officer puts the arrest information in the computer that generates the arrest number. The LAPS officer sits directly across from the holding cells, which are visible as long as the door is open. Unless he is on patrol, PO McLaughlin does not keep a memo-book. PO McLaughlin explained that the midnight tour has roll call at 11:15 p.m., which takes about ten minutes. The preceding tour ends at about 11:35 p.m. The previous LAPS officer will usually let the oncoming one know about the status of the arrest paperwork. The cell attendant does the check of the holding cells, but if no one is assigned, the LAPS officer may be assigned to do the check. A description of the incident was provided for PO McLaughlin. He did not recall witnessing “anything like that.” He denied searching § 87(2)(b) and did not recall doing a check of the cells that night. He did not recall any of the prisoners complaining that night. He confirmed there is a prisoner log kept in the 81st Precinct. PO McLaughlin stated that there would not normally be a reason to go inside the holding cell to search a prisoner. An exception could be if the prison still had his shoe laces, for example. Arrested individuals are searched in front of the desk. The individual’s belongings, along with his shoestrings and belt, are vouchered.

PO Paul Petro

PO Paul Petro is a § 87(2)(b) year old white male, 5’10” tall and 230 pounds, with brown hair and brown eyes. He has been a NYPD officer for nineteen years. He is currently assigned to the 81st Precinct. He was interviewed at the CCRB on January 30, 2002 (enclosures 18a-18b).

On January 12, 2001, PO Paul Petro worked the four to midnight shift as the assistant desk officer for the 81st Precinct. The roll call also listed PO Petro as the cell attendant. PO Petro stated that his steady assignment is the assistant desk officer and he “no idea” why he was also listed as the cell attendant. He explained that he has not “done the cells in years.” PO Petro did not have any memo-book entries for the

date of the incident. Regarding the inspection of the holding cells, he stated that the cell attendant checks on the prisoners in the holding cells “every thirty minutes or so.” PO Petro was shown a copy of the command log that contained the entry of the cell inspection at 11:15 p.m. PO Petro explained that the incoming tour commonly does a series of checks of the station house and records the entries in the command log. Once the incoming tour comes on duty, he is usually preparing the property (guns and drugs) to be sent out to the lab. He confirmed a prisoner pen holding roster was kept in the 81st Precinct. PO Petro did not recall any disturbances with any of the prisoners that night. He maintained he did not check the cells and would have been in the property room, which is not near the cells. He maintained he has not spoken to the commanding officer or the ICO about this incident. PO Petro maintained he has never had a mustache.

PO Ronaldo Burke

PO Ronaldo Burke is a § 87(2)(b) year old Hispanic male, 6’1” tall and 250 pounds, with brown hair and brown eyes. He has been a NYPD officer for three years. He is currently assigned to the 81st Precinct. He was interviewed at the CCRB on January 17, 2002 (enclosures 17a-17b).

On January 12, 2001, PO Ronaldo Burke worked from 11:15 p.m. until 7:50 a.m., as the assistant desk officer in the 81st Precinct. PO Burke explained that is not his regular assignment. He is usually on patrol, and was unsure why he was assigned to the desk on the date of the incident. He explained that the assistant desk officer stands near the desk, checks the property, checks and assigns the RMP’s, and counts the summonses; anything the desk officer does not have time to do. PO Burke explained that the incoming tour is responsible for the check of the cells. He stated either the desk officer or the cell attendant inspects the cells and does the head count of the prisoners. If there is not a cell attendant, the desk officer is supposed to do the inspection. PO Burke did not have any recollection of § 87(2)(b). He did not recall any disturbances that night with any of the prisoners. He also did not recall any of the officers entering the cell during the check of the cells.

PO Vincent Aversa

PO Vincent Aversa is a § 87(2)(b) year old white male, 5’8” tall and 195 pounds, with brown hair and brown eyes. PO Aversa has been a NYPD officer for six years. He is currently assigned to the 81st Precinct. He was interviewed at the CCRB on January 16, 2002 (enclosures 15a-15b).

On January 12, 2001, PO Vincent Aversa worked a four to midnight tour as the arrest processing (LAPS) officer for the 81st Precinct. He explained that entails entering information into the online booking computer, getting “ready times” from the District Attorney’s Office, and other arrest processing duties. PO Aversa did not have any recollection of § 87(2)(b). PO Aversa did not recall the incident involving § 87(2)(b). PO Aversa confirmed there is an overlap of about thirty minutes between the tours. He explained when the new tour comes on duty, he is relieved of his duties. He could not recall what he did between the time the midnight tour came on duty and the time he left the station house. PO Aversa did not recall any of the inmates causing any disturbances. He stated that either the cell attendant or desk officer usually does the check of the cells. He could not recall whether he checked the cells that evening. PO Aversa explained that the LAPS officer sits at a desk within viewing distance of the cells. The midnight tour has a steady LAPS officer, but PO McLaughlin occasionally is assigned to those duties. Once PO McLaughlin came on duty, PO Aversa was relieved of his duties.

NYPD Documents

The Roll Calls for Tour #3 on January 12th and #1 on January 13th were obtained to identify the officers assigned to the station house at the time of the incident (enclosures 24a-24i). A list of the officers for each tour was made (enclosure 32).

§ 87(2)(b) was arrested and brought to the 81st Precinct. An Online Booking Sheet was prepared with the charge § 87(2)(a) 160.50

§ 87(2)(g)

- A) **Force:** An officer used physical force against § 87(2)(b)
- B) **Abuse of Authority:** An officer searched and strip-searched § 87(2)(b)
- C) **Abuse of Authority:** An officer did not provide his name and shield to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated the incident took place at 12:15 a.m. However, the command log noted that the check of the prisoners and the cell occurred at 11:15 p.m. § 87(2)(g) the command log does not note who conducted the cell check. Further, a record request for the prisoner log for the dates of the incident was not fulfilled, “no record found.” Additional inquiries into the location of this document were unsuccessful. § 87(2)(g)

§ 87(2)(g)

He described him as a white male, about 35 to 36 years of age, 6’1” tall with a “big” build, with thick black hair and a black mustache. Roll Calls obtained from the 81st Precinct identified officers from the overlapping tours working in the stationhouse around the time of the incident. § 87(2)(b) described that the offending officer went to sit at a nearby desk to fill out paperwork. § 87(2)(g)

PO Paul Petro was assigned as the assistant desk officer / cell attendant for the outgoing tour. PO Petro is the steady ADO and may have been assigned as the cell attendant on paper only. He maintained he never has anything to do with the cells or the prisoners, inadvertently confirmed by PO Shapiro, who had previously stated that PO Petro avoids such duty. Further, PO Petro does not have a mustache, and stated he has never had one. PO Vincent Aversa was the L.A.P.S. (arrest processing) officer for the departing tour. He also did not recall anything about the incident. Nor did he fit the description. PO James McLaughlin was the arresting processing officer for the incoming tour. He appears to be also the only officer assigned to the station house that has a mustache. However, he is balding, in contrast to § 87(2)(b)s description of the officer having a full head of black hair. PO McLaughlin denied having any knowledge of the incident. § 87(2)(g) None of the officers interviewed had any knowledge of the incident.

The officer alleged to have committed the search and strip-search could not identified. At the time of the incident, he was not wearing his shield and nameplate. § 87(2)(g)

§ 87(2)(b) did not identify this officer from any of the photo arrays. Further the officer was not identified through any of the NYPD documents. Sgt. Stephenson, who spoke to § 87(2)(b) immediately after the incident occurred, did not provide § 87(2)(b) any identifying information about the officer. Nor did he provide this information during his CCRB interview. § 87(2)(g)

- D) **Abuse of Authority:** Sgt. Ruel Stephenson refused to take a complaint from § 87(2)(b)

Patrol Guide Procedure Number 207-31 provides the guidelines for the processing of civilian complaints against members of the NYPD. The officer who receives the complaint will “report all misconduct complaints including unnecessary use of force, abuse of authority, discourtesy, and offensive language to the Civilian Complaint Review Board.” This entails interviewing the complainant and assisting in the

preparation of the complaint form. § 87(2)(b) made a verbal complaint to Sgt. Stephenson about the officer that had just forcibly searched him by pulling down his pants and underwear. § 87(2)(g)

[REDACTED]

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: